

STATE OF NEW YORK  
COUNTY OF WESTCHESTER: WHITE PLAINS FAMILY COURT

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IN THE MATTER OF:

TARA KATELYN WALSH,

Petitioner,

- vs. -

STEPHEN GRANT RUSSELL,

Respondent.

-----X

STEPHEN GRANT RUSSELL,

Petitioner,

- vs. -

TARA KATELYN WALSH,

Respondent.

-----X

Virtual Proceeding

111 Dr. Martin Luther King Jr. Boulevard

White Plains, NY 10601

January 26, 2021

BEFORE: HONORABLE WAYNE A. HUMPHREY, Part 2

APPEARANCES: MASSIMO DIFABIO, ESQ.  
Attorney for Stephen Grant Russell

JENNIFER MARIE M. JACKMAN, ESQ.  
Attorney for the Child

TARA KATELYN WALSH, Petitioner/Respondent, Pro Se

ALSO PRESENT: Stephen Grant Russell, Respondent/Petitioner

Digital Recorded Proceeding, Valeri Wilson, Transcriber

1 (12:00:39 p.m.)

2 COURT OFFICER: Good day, Judge. This is number  
3 15 through 26 on today's calendar in the matter of Walsh  
4 and Russell. Counsel, please state your appearance.

5 UNIDENTIFIED VOICE: That's you, Max.

6 COURT OFFICER: You're on mute, Max. Still on  
7 mute.

8 MR. DIFABIO: Okay. For Respondent/Petitioner,  
9 Stephen Grant Russell, Max DiFabio, good morning, Your  
10 Honor.

11 MS. JACKMAN: Good morning, Your Honor, Jennifer  
12 Jackman, attorney assigned to represent the child, Evelyn  
13 Walsh.

14 COURT OFFICER: Thank you. Ms. Walsh, can you  
15 please raise your right hand? Do you swear or affirm to  
16 tell the truth?

17 T A R A K A T E L Y N W A L S H, a witness  
18 herein, was examined and testified as follows:

19 MS. WALSH: I do.

20 COURT OFFICER: Please state your name and  
21 address unless confidential.

22 MS. WALSH: 394 Whippoorwill Road, Chappaqua, New  
23 York, 10514.

24 COURT OFFICER: Thank you. Mr. Russell, do you  
25 swear or affirm to tell the truth?

1                   S T E P H E N   G R A N T   R U S S E L L , a  
2                   witness herein, was examined and testified as follows:

3                   MR. RUSSELL: I do.

4                   COURT OFFICER: Please state your name and  
5                   address unless confidential.

6                   MR. RUSSELL: Stephen Russell. My address is  
7                   confidential.

8                   COURT OFFICER: Okay. Judge, you have the floor.

9                   THE COURT: All right. Mr. DiFabio, has your  
10                  client filed the appropriate papers in court to establish  
11                  that his address should be confidential?

12                  MR. DIFABIO: Your Honor, I believe -- I have  
13                  information to believe -- I believe I had a while ago with  
14                  Judge Horowitz. Either I filed them or prepared them for  
15                  my client's signature; I'm not entirely sure.

16                  THE COURT: Well, Counsel, I did a deep dive in  
17                  this court file yesterday, and I don't see it in there  
18                  anywhere.

19                  MR. DIFABIO: Then it is what it is, Judge, but I  
20                  did -- I do recall preparing those documents. Whether or  
21                  not --

22                  THE COURT: So then he needs -- he needs to put  
23                  his address on the record, please.

24                  MR. RUSSELL: I'd rather keep it confidential per  
25                  the permanent restraining order against her in San

1 Francisco court, not in your file.

2 THE COURT: Sir, I'm in New York. I'm not in  
3 California. Please put your name and your address on the  
4 record, sir.

5 COURT OFFICER: Mr. Russell, Judge asked you to  
6 put your current address on the record.

7 It appears Respondent's ignoring you, Judge.

8 THE COURT: Mr. DiFabio?

9 MR. DIFABIO: Yes, Judge. Mr. Russell, can you  
10 hear me? Steve? Hello?

11 MR. RUSSELL: (Inaudible) you, Max.

12 MR. DIFABIO: Steve, the judge -- because we have  
13 not filed an Order of Confidentiality, the judge requires  
14 -- the law requires that you put your address on the  
15 record. The judge is requesting that you do so.

16 MR. RUSSELL: Okay. Please provide him my  
17 address.

18 COURT OFFICER: He wants you to put it on the  
19 record, sir, now.

20 MR. DIFABIO: Judge, I'm sorry, I'm not hearing  
21 completely well.

22 COURT OFFICER: Mr. DiFabio, he wants you to  
23 provide to the Court separately. I just advised him that  
24 Judge wants him to put on the record right now in open  
25 court.

1 MR. DIFABIO: Steve, I can't do that for you.  
2 The judge wants you to do it.

3 COURT OFFICER: Still nothing, Judge.

4 THE COURT: (Inaudible). Mr. Russell, do you  
5 hear the Court?

6 MR. RUSSELL: Yeah, (inaudible) so, Max, you  
7 should have it but (inaudible) it's 1166 Bel Marin Keys,  
8 B-e-l M-a-r-i-n, Keys, K-e-y-s, Novato, N-o-v-a-t-o,  
9 California, 94949. Okay? It's definitely in effect where  
10 this should be kept confidential per my (inaudible)  
11 restraining order.

12 THE COURT: Sir --

13 MR. RUSSELL: (Inaudible).

14 THE COURT: -- sir, don't tell me why  
15 (inaudible), please. Sir, don't tell me what's  
16 inappropriate. All right. So this is this Court's first  
17 opportunity to have all the parties before myself but I've  
18 had the opportunity to review the entire court file, so I  
19 have a lot of stuff that's pending at this point here to  
20 say. And, Ms. Jackman, I'll let you go first because I  
21 think I saw your Order to Show Cause first; is that  
22 correct?

23 MS. JACKMAN: Yes, Your Honor, I did file an  
24 Order to Show Cause on about December 16th, 2020, with  
25 respect to my fees. Mr. DiFabio filed a Notice of Motion,

1 I believe dated January 19th, 2021, seeking dismissal of my  
2 application and for failure to comply with Parts 136 and  
3 137 of the Part Rules.

4 So as Your Honor knows, I'm the AFC assigned by  
5 the Court on this matter. The order with which I am  
6 seeking enforcement is an order directing payment of the  
7 AFC that was actually entered on consent of the parties  
8 when being represented by counsel. This is prior to Mr.  
9 DiFabio's time on this case on or about November 29th,  
10 2018.

11 The Fee Dispute Resolution Program pursuant to  
12 Part 137.1 of the Rules doesn't apply to AFCs. I don't  
13 have a relationship with Mr. Russell that's based upon a  
14 retainer; it is based up on a court order. Mr. Russell is  
15 not my client. My client is Evelyn Walsh, and I think it's  
16 137.1(b)(5)(sic) clearly states that the rules do not apply  
17 to fees where it's been ordered pursuant to a statute or an  
18 order such as this, so I'm going to put in a written  
19 response to the motion. This is a fee application and Mr.  
20 Russell is filing papers all over the place so that I can  
21 spend more fees to defend myself which I did not want to  
22 do. I ask that Mr. Russell's motion be dismissed and that  
23 Your Honor grant my application in its entirety. It is for  
24 fees in the sum of \$24,360.33, as of November 30th, 2020,  
25 as I outlined in my motion. The rules are attached.

1 They're sent directly to Mr. Russell. They were sent to  
2 his accountant, and they were sent to his attorney every  
3 single month. He has asked for duplicate copies and they  
4 have been re-sent, and we've received no payment.

5 So I'd ask Your Honor to enter judgment at this  
6 time against Mr. Russell for nonpayment.

7 THE COURT: So (inaudible) Mr. DiFabio does, Ms.  
8 Walsh, I see that you're not represented at the present  
9 time; is that correct?

10 MS. WALSH: Your Honor, Mr. Guttridge asked to  
11 resign and since then I haven't had counsel because the  
12 (inaudible) are pretty much closed. (Inaudible) open them  
13 again so I would like to ask the Court for counsel again  
14 because I can't find anyone (inaudible).

15 THE COURT: All right. So due to the COVID-19,  
16 I'm going to grant your application and assign an 18b  
17 attorney to assist you in these matters today.

18 MS. WALSH: Okay. Thank you, Your Honor.

19 THE COURT: In addition, ma'am, you did file a  
20 motion, so I'm not sure if I should allow you to take a  
21 position regarding Ms. Jackman's Order to Show Cause or Mr.  
22 DiFabio's Notice of Motion until counsel's (inaudible) your  
23 view on -- for the position, so we're going to hold your  
24 (inaudible) as you have no attorney present.

25 Mr. DiFabio?

1 MR. DIFABIO: Yes, Judge. Briefly, when Ms.  
2 Jackman was assigned to the matter, I was not -- I was not  
3 representing Mr. Russell at that time, and she was assigned  
4 into (inaudible) by my client subject to reallocation at  
5 the time of trial. However, Your Honor, Judge Horowitz  
6 dismissed this case without a trial. We never had the  
7 opportunity to present or --

8 THE COURT: She dismissed -- she dismissed it  
9 because he defaulted and failed to appear in court; is that  
10 right?

11 MR. DIFABIO: That's correct. He failed to  
12 appear but he did not default, is our position, Your Honor.

13 THE COURT: That's your position but Judge  
14 Horowitz felt it was a default and dismissed those  
15 petitions and granted (inaudible) requested.

16 MR. DIFABIO: Correct, Judge. There's an appeal  
17 pending presently. It's fully submitted at the Appellate  
18 Division 2nd with respect to that issue.

19 THE COURT: Okay.

20 MR. DIFABIO: So, Judge, so one, the fees were  
21 never reallocated for whatever reason. Two, it is our  
22 belief, based on research, that Parts 136 and 137 do  
23 control here. Mr. Russell has made efforts at reaching out  
24 to Ms. Jackman and her firm to discuss the billing and to  
25 work out certain aspects, (inaudible) but I think Ms.

1 Jackman would concur on that. And for that reason, Judge,  
2 we think that this Court lacks subject matter jurisdiction,  
3 and we would ask you to grant our motion and dismiss Ms.  
4 Jackman's Order to Show Cause, respectfully.

5 THE COURT: All right. So what I'm going to do  
6 is allow Ms. Walsh's attorney to be assigned. I want to  
7 have their input and the Court will issue a decision on  
8 both motions.

9 MS. JACKMAN: Your Honor, (inaudible) going to be  
10 requiring a bit more expense for me. I will do that if  
11 Your Honor so directs.

12 THE COURT: All right. Ms. (inaudible) assist  
13 this Court in making an informed complete decision.

14 MS. JACKMAN: Yes, Judge, of course.

15 MR. DIFABIO: Your Honor, may I ask a question,  
16 please?

17 THE COURT: Yes, you may.

18 MR. DIFABIO: Ms. Walsh and I, to her credit,  
19 have been discussing a possible settlement of all issues in  
20 this case. So I'm going to assume you're going to assign  
21 counsel today, so our communications, so she understands, I  
22 can no longer speak to her going forward.

23 MS. WALSH: That's fine.

24 MR. DIFABIO: Okay.

25 MS. WALSH: Your Honor, if I may speak?

1 THE COURT: Yes, you may, ma'am.

2 MS. WALSH: 'Cause there's a few things. So I  
3 was recently granted to have my address confidential from  
4 New York State. I applied, so I forget the program in  
5 Albany. And I filed an affidavit with the Court so I would  
6 just ask for that confidentiality. (Inaudible) but I read  
7 on the affidavit that if exempted, you know, the  
8 confidentiality from New York State that it's effective  
9 without an affidavit, so I just wanted to confirm with the  
10 Court that I can from this point forward keep my address  
11 confidential.

12 THE COURT: When did you file that, ma'am?

13 MS. WALSH: I filed that at the end of last week.  
14 I was kind of having a little bit of trouble because the  
15 clerk wasn't picking up the phone, so I sent it to virtual  
16 court (inaudible).

17 THE COURT: (Inaudible) don't have it, ma'am.

18 MS. WALSH: Yeah.

19 THE COURT: All right. So I don't think there's  
20 much we can do today at this point. Now, Mr. DiFabio, I do  
21 see that you have a Motion to Vacate the judgment issued by  
22 Judge Horowitz; is that correct?

23 MR. DIFABIO: That's correct, Your Honor.

24 THE COURT: So that's --

25 MR. DIFABIO: All of this is procedural, by the

1 way.

2 THE COURT: What does that mean, Counsel?

3 MR. DIFABIO: Well, we had to take certain steps  
4 to -- pursuant to the appeal and the other issues in this  
5 case, we had to file these -- these procedures. Hopefully,  
6 Ms. Walsh and I were on our way towards trying to resolve  
7 this. Hopefully, her new attorney will contact me and all  
8 of this will be made unnecessary; that's my hope.

9 THE COURT: All right. So, Mike, can we get an  
10 adjourn date on -- has Ms. Jackman been part of these  
11 settlement discussion and?

12 MS. JACKMAN: I have not.

13 THE COURT: Okay.

14 MS. WALSH: But I can tell Your Honor I think a  
15 settlement is not really possible (inaudible) so.

16 THE COURT: Okay. What's the earliest date we  
17 can get, Mike? I don't want to go too far out.

18 COURT OFFICER: (Inaudible).

19 THE COURT: All right. (Inaudible) April 27th  
20 (inaudible) what's available.

21 COURT OFFICER: The 27th at 3:00?

22 MR. DIFABIO: One moment, please, Judge?

23 THE COURT: Uh-huh.

24 MR. DIFABIO: April 27th. That's fine, Judge.

25 THE COURT: 3:00?

1 MS. JACKMAN: That's fine.

2 MS. WALSH: That's fine.

3 THE COURT: So I enter (inaudible), Mr. Russell.  
4 Mr. Russell, you need to make sure on the next date that  
5 you have access to a computer or Apple, Mac, whatever, some  
6 way so you can appear remotely on these proceedings. Okay?  
7 Do you understand that, sir?

8 COURT OFFICER: Sir, the judge is speaking to  
9 you.

10 MR. RUSSELL: (Inaudible).

11 THE COURT: All right. Thank you. (Inaudible)  
12 currently, sir, as you are aware, if you fail to be present  
13 on the return date, this Court can proceed in your absence.  
14 Do you understand that?

15 MR. RUSSELL: (No audible answer.)

16 THE COURT: Can't hear you again, sir.

17 MR. RUSSELL: Yep, yep, I understand that.

18 THE COURT: All right. So that means that if you  
19 fail to appear on the return date, this Court can issue  
20 judgment, dismiss your petitions just like Judge Horowitz  
21 did in the past. Do you understand that, sir?

22 MR. RUSSELL: (No audible answer.)

23 THE COURT: I can't hear you again, sir.

24 MR. RUSSELL: (Inaudible) available by phone or  
25 (inaudible).

1 THE COURT: You are to be available by  
2 (inaudible), not by phone, sir.

3 MR. RUSSELL: If that's the law, I'll be  
4 available.

5 THE COURT: That's the law of this case, sir.  
6 We're not going to play any games with you back and forth.  
7 So, Mr. DiFabio, you should take the opportunity to  
8 (inaudible) on the return date, to (inaudible), to schedule  
9 (inaudible) meeting with your client in your office or  
10 whatever format you need so he can be here remotely.

11 MR. DIFABIO: I will do my best, Judge.

12 THE COURT: Thank you very much, Mr. DiFabio.

13 MR. DIFABIO: You're welcome.

14 THE COURT: Thank you, and have a good day.

15 MR. DIFABIO: Thank you.

16 MS. WALSH: Sorry, Your Honor, just because I've  
17 had trouble reaching the clerk when I've tried to call.  
18 Will the Court send me an email with my new attorney's  
19 information or how should I?

20 THE COURT: They'll reach out to you. We're  
21 going to make an assignment today and they should be  
22 reaching out to you within the next week or so. If you  
23 haven't heard from them in a week, send an email to  
24 (inaudible) one of the clerks will ensure that you get the  
25 name and telephone number for the person representing you.

1 MS. WALSH: Okay. Thank you, Your Honor.

2 THE COURT: All right. Have a good day. Enjoy.

3 MS. JACKMAN: Thank you, Judge.

4 MS. WALSH: Thank you, bye.

5 MR. DIFABIO: Take care, Jennifer. (Inaudible).

6 Bye.

7 (12:16:18 p.m.)[PROCEEDING CONCLUDED]

8 CERTIFICATE: I, Valeri Wilson, certify the foregoing transcript  
9 of proceedings held at White Plains County Family Court, NYS,  
10 Walsh vs. Russell, File #154703, was prepared using the required  
11 electronic equipment and is a true and accurate record of the  
12 proceedings.

13 Signature: Date: January 31, 2021  
14 *Valeri Wilson*  
Electronic signature

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|-----------------------------------------------------------------|----------------------------------------------------|----------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                 | 6:2,19,23;7:16                                     | <b>calendar (1)</b><br>2:3                                                             | <b>consent (1)</b><br>6:7                                                                                                                                                                                                                                                                               | <b>definitely (1)</b><br>5:9                                                                                                                                     |
| <b>#</b>                                                        | <b>applied (1)</b><br>10:4                         | <b>California (2)</b><br>4:3;5:9                                                       | <b>contact (1)</b><br>11:7                                                                                                                                                                                                                                                                              | <b>DIFABIO (33)</b><br>2:8,9;3:9,12,19;<br>4:8,9,12,20,22;5:1,<br>25;7:7,25;8:1,11,16,<br>20;9:15,18,24;<br>10:20,23,25;11:3,<br>22,24;13:7,11,12,<br>13,15;14:5 |
| <b>#154703 (1)</b><br>14:10                                     | <b>apply (2)</b><br>6:12,16                        | <b>call (1)</b><br>13:17                                                               | <b>control (1)</b><br>8:23                                                                                                                                                                                                                                                                              | <b>DiFabio's (2)</b><br>6:9;7:22                                                                                                                                 |
| <b>\$</b>                                                       | <b>appropriate (1)</b><br>3:10                     | <b>can (13)</b><br>2:14;4:9;6:20;<br>9:22;10:10,20;11:9,<br>14,17;12:6,13,19;<br>13:10 | <b>copies (1)</b><br>7:3                                                                                                                                                                                                                                                                                | <b>directing (1)</b><br>6:6                                                                                                                                      |
| <b>\$24,360.33 (1)</b><br>6:24                                  | <b>April (2)</b><br>11:19,24                       | <b>care (1)</b><br>14:5                                                                | <b>Counsel (7)</b><br>2:4;3:16;6:8;7:11,<br>13;9:21;11:2                                                                                                                                                                                                                                                | <b>directly (1)</b><br>7:1                                                                                                                                       |
| <b>A</b>                                                        | <b>aspects (1)</b><br>8:25                         | <b>case (5)</b><br>6:9;8:6;9:20;<br>11:5;13:5                                          | <b>counsel's (1)</b><br>7:22                                                                                                                                                                                                                                                                            | <b>directs (1)</b><br>9:11                                                                                                                                       |
| <b>absence (1)</b><br>12:13                                     | <b>assign (2)</b><br>7:16;9:20                     | <b>Cause (5)</b><br>5:21,24;7:21;9:4;<br>10:2                                          | <b>County (1)</b><br>14:9                                                                                                                                                                                                                                                                               | <b>discuss (1)</b><br>8:24                                                                                                                                       |
| <b>access (1)</b><br>12:5                                       | <b>assigned (5)</b><br>2:12;6:4;8:2,3;9:6          | <b>certain (2)</b><br>8:25;11:3                                                        | <b>course (1)</b><br>9:14                                                                                                                                                                                                                                                                               | <b>discussing (1)</b><br>9:19                                                                                                                                    |
| <b>accountant (1)</b><br>7:2                                    | <b>assignment (1)</b><br>13:21                     | <b>CERTIFICATE (1)</b><br>14:8                                                         | <b>COURT (75)</b><br>2:2,6,14,20,24;<br>3:4,8,9,10,16,17,22;<br>4:1,2,5,8,18,22,23,<br>25;5:3,4,5,12,14,18;<br>6:5,14;7:7,13,15,19;<br>8:8,9,13,19;9:2,5,7,<br>12,13,17;10:1,5,10,<br>12,16,17,19,24;<br>11:2,9,13,16,18,19,<br>21,23,25;12:3,8,11,<br>13,16,18,19,23;<br>13:1,5,12,14,18,20;<br>14:2,9 | <b>discussion (1)</b><br>11:11                                                                                                                                   |
| <b>accurate (1)</b><br>14:11                                    | <b>assist (2)</b><br>7:17;9:12                     | <b>certify (1)</b><br>14:8                                                             | <b>Court's (1)</b><br>5:16                                                                                                                                                                                                                                                                              | <b>dismiss (2)</b><br>9:3;12:20                                                                                                                                  |
| <b>actually (1)</b><br>6:7                                      | <b>assume (1)</b><br>9:20                          | <b>Chappaqua (1)</b><br>2:22                                                           | <b>COVID-19 (1)</b><br>7:15                                                                                                                                                                                                                                                                             | <b>dismissal (1)</b><br>6:1                                                                                                                                      |
| <b>addition (1)</b><br>7:19                                     | <b>attached (1)</b><br>6:25                        | <b>child (1)</b><br>2:12                                                               | <b>credit (1)</b><br>9:18                                                                                                                                                                                                                                                                               | <b>dismissed (5)</b><br>6:22;8:6,8,8,14                                                                                                                          |
| <b>address (11)</b><br>2:21;3:5,6,11,23;<br>4:3,6,14,17;10:3,10 | <b>attorney (6)</b><br>2:12;7:2,17,24;<br>9:6;11:7 | <b>clearly (1)</b><br>6:16                                                             | <b>current (1)</b><br>4:6                                                                                                                                                                                                                                                                               | <b>Dispute (1)</b><br>6:11                                                                                                                                       |
| <b>adjourn (1)</b><br>11:10                                     | <b>attorney's (1)</b><br>13:18                     | <b>clerk (2)</b><br>10:15;13:17                                                        | <b>currently (1)</b><br>12:12                                                                                                                                                                                                                                                                           | <b>dive (1)</b><br>3:16                                                                                                                                          |
| <b>advised (1)</b><br>4:23                                      | <b>audible (2)</b><br>12:15,22                     | <b>clerks (1)</b><br>13:24                                                             | <b>D</b>                                                                                                                                                                                                                                                                                                | <b>Division (1)</b><br>8:18                                                                                                                                      |
| <b>AFC (2)</b><br>6:4,7                                         | <b>available (4)</b><br>11:20;12:24;13:1,<br>4     | <b>client (5)</b><br>3:10;6:15,15;8:4;<br>13:9                                         | <b>date (7)</b><br>11:10,16;12:4,13,<br>19;13:8;14:13                                                                                                                                                                                                                                                   | <b>documents (1)</b><br>3:20                                                                                                                                     |
| <b>AFCs (1)</b><br>6:12                                         | <b>aware (1)</b><br>12:12                          | <b>client's (1)</b><br>3:15                                                            | <b>dated (1)</b><br>6:1                                                                                                                                                                                                                                                                                 | <b>due (1)</b><br>7:15                                                                                                                                           |
| <b>affidavit (3)</b><br>10:5,7,9                                | <b>B</b>                                           | <b>closed (1)</b><br>7:12                                                              | <b>day (3)</b><br>2:2;13:14;14:2                                                                                                                                                                                                                                                                        | <b>duplicate (1)</b><br>7:3                                                                                                                                      |
| <b>affirm (2)</b><br>2:15,25                                    | <b>back (1)</b><br>13:6                            | <b>communications (1)</b><br>9:21                                                      | <b>December (1)</b><br>5:24                                                                                                                                                                                                                                                                             | <b>E</b>                                                                                                                                                         |
| <b>again (4)</b><br>7:13,13;12:16,23                            | <b>based (3)</b><br>6:13,14;8:22                   | <b>complete (1)</b><br>9:13                                                            | <b>decision (2)</b><br>9:7,13                                                                                                                                                                                                                                                                           | <b>earliest (1)</b><br>11:16                                                                                                                                     |
| <b>against (2)</b><br>3:25;7:6                                  | <b>Bel (1)</b><br>5:7                              | <b>completely (1)</b><br>4:21                                                          | <b>deep (1)</b><br>3:16                                                                                                                                                                                                                                                                                 | <b>effect (1)</b><br>5:9                                                                                                                                         |
| <b>ago (1)</b><br>3:13                                          | <b>B-e-l (1)</b><br>5:8                            | <b>comply (1)</b><br>6:2                                                               | <b>default (2)</b><br>8:12,14                                                                                                                                                                                                                                                                           | <b>effective (1)</b><br>10:8                                                                                                                                     |
| <b>Albany (1)</b><br>10:5                                       | <b>belief (1)</b><br>8:22                          | <b>computer (1)</b><br>12:5                                                            | <b>defaulted (1)</b><br>8:9                                                                                                                                                                                                                                                                             | <b>efforts (1)</b><br>8:23                                                                                                                                       |
| <b>allow (2)</b><br>7:20;9:6                                    | <b>best (1)</b><br>13:11                           | <b>CONCLUDED] (1)</b><br>14:7                                                          | <b>defend (1)</b><br>6:21                                                                                                                                                                                                                                                                               | <b>Either (1)</b><br>3:14                                                                                                                                        |
| <b>appeal (2)</b><br>8:16;11:4                                  | <b>billing (1)</b><br>8:24                         | <b>concur (1)</b><br>9:1                                                               |                                                                                                                                                                                                                                                                                                         | <b>electronic (2)</b><br>14:11,14                                                                                                                                |
| <b>appear (4)</b><br>8:9,12;12:6,19                             | <b>bit (2)</b><br>9:10;10:14                       | <b>confidential (8)</b><br>2:21;3:5,7,11,24;<br>5:10;10:3,11                           |                                                                                                                                                                                                                                                                                                         | <b>email (2)</b><br>13:18,23                                                                                                                                     |
| <b>appearance (1)</b><br>2:4                                    | <b>both (1)</b><br>9:8                             | <b>Confidentiality (3)</b><br>4:13;10:6,8                                              |                                                                                                                                                                                                                                                                                                         | <b>end (1)</b><br>10:13                                                                                                                                          |
| <b>appears (1)</b><br>4:7                                       | <b>Briefly (1)</b><br>8:1                          | <b>confirm (1)</b><br>10:9                                                             |                                                                                                                                                                                                                                                                                                         | <b>enforcement (1)</b><br>6:6                                                                                                                                    |
| <b>Appellate (1)</b><br>8:17                                    | <b>bye (2)</b><br>14:4,6                           |                                                                                        |                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                  |
| <b>Apple (1)</b><br>12:5                                        | <b>C</b>                                           |                                                                                        |                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                  |
| <b>application (4)</b>                                          |                                                    |                                                                                        |                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                  |

|                                                                   |                                                                                                                    |                                                                                                                                                                          |                                                            |                                                                                 |
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| <b>Enjoy (1)</b><br>14:2                                          | <b>first (3)</b><br>5:16,20,21                                                                                     | <b>Horowitz (5)</b><br>3:14;8:5,14;<br>10:22;12:20                                                                                                                       | <b>Keys (2)</b><br>5:7,8                                   | <b>motions (1)</b><br>9:8                                                       |
| <b>ensure (1)</b><br>13:24                                        | <b>floor (1)</b><br>3:8                                                                                            | <b>I</b>                                                                                                                                                                 | <b>K-e-y-s (1)</b><br>5:8                                  | <b>much (3)</b><br>7:12;10:20;13:12                                             |
| <b>enter (2)</b><br>7:5;12:3                                      | <b>follows (2)</b><br>2:18;3:2                                                                                     |                                                                                                                                                                          | <b>kind (1)</b><br>10:14                                   | <b>mute (2)</b><br>2:6,7                                                        |
| <b>entered (1)</b><br>6:7                                         | <b>foregoing (1)</b><br>14:8                                                                                       | <b>ignoring (1)</b><br>4:7                                                                                                                                               | <b>knows (1)</b><br>6:4                                    | <b>myself (2)</b><br>5:17;6:21                                                  |
| <b>entire (1)</b><br>5:18                                         | <b>forget (1)</b><br>10:4                                                                                          | <b>inappropriate (1)</b><br>5:16                                                                                                                                         | <b>L</b>                                                   | <b>N</b>                                                                        |
| <b>entirely (1)</b><br>3:15                                       | <b>format (1)</b><br>13:10                                                                                         | <b>Inaudible (36)</b><br>4:11;5:4,6,7,10,<br>13,15;7:7,12,12,14,<br>22,24;8:4,15,25;9:9,<br>12;10:6,16,17;<br>11:15,18,19,20;<br>12:3,10,11,24,25;<br>13:2,8,8,9,24;14:5 |                                                            |                                                                                 |
| <b>entirety (1)</b><br>6:23                                       | <b>forth (1)</b><br>13:6                                                                                           | <b>information (2)</b><br>3:13;13:19                                                                                                                                     | <b>lacks (1)</b><br>9:2                                    | <b>name (4)</b><br>2:20;3:4;4:3;<br>13:25                                       |
| <b>equipment (1)</b><br>14:11                                     | <b>forward (2)</b><br>9:22;10:10                                                                                   | <b>informed (1)</b><br>9:13                                                                                                                                              | <b>last (1)</b><br>10:13                                   | <b>need (2)</b><br>12:4;13:10                                                   |
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| <b>exempted (1)</b><br>10:7                                       |                                                                                                                    | <b>issued (1)</b><br>10:21                                                                                                                                               | <b>lot (1)</b><br>5:19                                     | <b>nonpayment (1)</b><br>7:6                                                    |
| <b>expense (1)</b><br>9:10                                        | <b>games (1)</b><br>13:6                                                                                           | <b>issues (2)</b><br>9:19;11:4                                                                                                                                           | <b>M</b>                                                   | <b>Notice (2)</b><br>5:25;7:22                                                  |
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|                                                                   | <b>Grant (4)</b><br>2:9;6:23;7:16;9:3                                                                              |                                                                                                                                                                          | <b>Mac (1)</b><br>12:5                                     | <b>N-o-v-a-t-o (1)</b><br>5:8                                                   |
| <b>fail (2)</b><br>12:12,19                                       | <b>granted (2)</b><br>8:15;10:3                                                                                    | <b>JACKMAN (13)</b><br>2:11,12;5:20,23;<br>8:2,24;9:1,9,14;<br>11:10,12;12:1;14:3                                                                                        | <b>making (1)</b><br>9:13                                  | <b>November (2)</b><br>6:9,24                                                   |
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| <b>failure (1)</b><br>6:2                                         | <b>H</b>                                                                                                           | <b>Jackman's (2)</b><br>7:21;9:4                                                                                                                                         | <b>M-a-r-i-n (1)</b><br>5:8                                | <b>NYS (1)</b><br>14:9                                                          |
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| <b>filed (6)</b><br>3:10,14;4:13;<br>5:25;10:5,13                 | <b>herein (2)</b><br>2:18;3:2                                                                                      | <b>keep (2)</b><br>3:24;10:10                                                                                                                                            | <b>Mike (2)</b><br>11:9,17                                 | <b>order (11)</b><br>3:25;4:13;5:11,<br>21,24;6:5,6,14,18;<br>7:21;9:4          |
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| per (2)<br>3:24;5:10                                           | raise (1)<br>2:15                           | respectfully (1)<br>9:4                                                                                                               | speaking (1)<br>12:8                   | understands (1)<br>9:21                                                                                         |
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| Plains (1)<br>14:9                                             | really (1)<br>11:15                         | review (1)<br>5:18                                                                                                                    | Steve (3)<br>4:10,12;5:1               | <b>V</b>                                                                                                        |
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|                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                         |  |  |  |
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